SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Criminal Appeal No. 1290 of 2019 (YEAR: 1992)

CORAM: S. RATNAVEL PANDIAN, K. JAYACHANDRA REDDY

State of Haryana
... Appellant(s) / Petitioner(s)
Versus
Bhajan Lal
... Respondent(s)

Acts Referred:	Code of Criminal Procedure, 1973
Sections:	Section 482 CrPC, Article 226

JUDICIAL HEADNOTE & SUMMARY

Formulated the foundational seven illustrative categories governing when High Courts can exercise inherent powers under Section 482 CrPC to quash malicious or legally untenable FIRs.

RATIO DECIDENDI

The Court held that: Formulated the foundational seven illustrative categories governing when High Courts can exercise inherent powers under Section 482 CrPC to quash malicious or legally untenable FIRs. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in State of Haryana v. Bhajan Lal (Criminal Appeal No. 1290 of 2019) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Code of Criminal Procedure, 1973, particularly Section 482 CrPC, Article 226. Formulated the foundational seven illustrative categories governing when High Courts can exercise inherent powers under Section 482 CrPC to quash malicious or legally untenable FIRs.

OPERATIVE ORDER

ORDER: Decided